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SAUTECH

IT AND DATA PROTECTION POLICY

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SAUTECH (PTY) LTD

Company Name: Sautech (Pty) Ltd

Physical Address: 36 Stokroos Avenue
Breunanda
Krugersdorp
Gauteng
South Africa

Mailing Address: 36 Stokroos Avenue
Breunanda
Krugersdorp
Gauteng
South Africa
1739

Telephone: +27 (11) 768 1790

Facsimile: +27 (86) 650 3480

E-mail: support@Sautech.net

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ACCEPTANCE & APPROVAL

LIST OF EFFECTIVE PAGES

The list below indicates the contents of the IT and Data Protection Policy which contain a true and accurate reflection of the policies and procedures of Sautech. It shows the number of pages and the date and revision status of said Policy. Sautech controls this document individually.

Revisions carried out on any page within this Policy will result in the entire document being raised to the following revision number.

No part of this document may be changed or amended without the signed approval of the CEO.

Policy	Pages	Dated	Revision
IT and Data Protection Policy	1 to 10	May 2021	00
Users of this Policy must note the following: - It is the responsibility of Sautech to be satisfied with each provision of this Policy's appropriateness to the particular operation and to make any necessary amendments and additions. - The policy is written to reflect the requirements and guidance material in the Protection of Personal Information Act, No. 4 of 2013 and its relevant regulations, as amended. This being so, the use of the compulsive verb, i.e., must/shall, does not necessarily indicate a legislative requirement but can indicate a suggested requirement generated by International Policies. - Sautech remains responsible for the adequacy of content, accuracy, and currency of this policy irrespective of its source.			
CEO	Signature	Date	

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1. Introduction & Purpose

- 1.1. Sautech offers clients different services where access to various technologies and service models are delivered over various mediums. Sautech acknowledges that it may process data (which may include personal data) to provide services to clients under various service level agreements.
- 1.2. Sautech hereby warrants its clients that in such circumstances, it will, in respect of such data which constitutes personal data, observe all the obligations of an 'operator' under the Protection of personal Information Act, 2013. Sautech will provide reasonable protection for its clients against all breaches of the said Act regarding the data as set out in this Policy.

2. Terms & definitions

- 2.1. **Operator:** As set out in Section 1 of the Protection of personal Information Act 4 of 2013, an Operator is a party who processes information for a Responsible Party, in terms of a contract or mandate, without coming under the Responsible Party's direct authority. Sautech processes information on an outsourced basis for the Responsible Party;
- 2.2. **Responsible Party:** The Client who bears ultimate responsibility for the processing of personal information in terms of the Protection of personal Information Act 4 of 2014, irrespective of the outsourcing of processing or aspects of processing, and also includes:
 - 2.2.1. the purpose of processing personal information; and
 - 2.2.2. the means of processing personal data, whether acting alone or in conjunction with others.

3. Application & Scope

- 3.1. This Policy applies to all clients of Sautech and must be read in conjunction with all relevant documentation and communication from Sautech.

4. General

- 4.1. Where Sautech is contracted to maintain any underlying infrastructure for the Client and forthwith remains a data processor processing the data on behalf of the Client, including tasks such as allocating computing resources, performing and storing backups and providing support.

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4.2. The Client:

- 4.2.1. determines the access rights, authority and specific roles to the information and data where more than one employee is likely to access the service; and
- 4.2.2. determines the purposes for which and how the personal data is to be processed; and
- 4.2.3. determines unrestricted/sole access to information.

4.3. The Client continues to be the Responsible Party in terms of the Act and does not transfer any obligations to Sautech by concluding any agreement (written or oral) to process and store personal data on their behalf.

4.4. If Sautech plays a role in determining the purposes for which the personal data are processed (such as third-party applications, advertising or marketing), and Sautech uses the personal data for its own purposes, subject to Clause 11.2 hereof, then it will also be a Responsible Party and will take on its own data protection responsibilities.

5. Data Migration

- 5.1. Data migration and the processing of certain types of personal data have a more significant impact on individuals' privacy than others' processing.
- 5.2. The Client is responsible for reviewing the personal data it processes and determine the migration thereof.
- 5.3. The Client must give specific assurances to the data subject where the Client collected personal data before the migration.
- 5.4. The Client will create a clear record about the categories of data it intends to move, including data for certain types of customer or data relating to certain types of transaction.
- 5.5. If collection of more personal data is due to the migration, such as usage statistics, transaction histories of users or 'metadata' of a personal nature, the Client will ensure that its data subjects know what is being collected, determine whether this is necessary and make sure that the data subjects are provided with sufficient information about this in the client's privacy policy.

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6. Security

- 6.1. Sautech has reasonable and appropriate technical and organisational measures against the unauthorised or unlawful personal data processing and accidental loss or destruction of, or damage to, personal data.
- 6.2. Sautech has reasonable and appropriate physical, technical and organisational security measures in place to the particular service provided.
- 6.3. Sautech reasonably endeavours that each sub processor's security likely to be involved in processing customer's data complies with security requirements as agreed.

7. Protecting data

- 7.1. The Client ensures that any encryption key is kept in the secure possession of an authorised person and notes that the loss of an encryption key could render the data useless and amount to the accidental destruction of personal data.
- 7.2. Data in transit between endpoints are secure and protected from interception by using an encrypted protocol. The encryption algorithm used meets recognised industry standards.
- 7.3. Reasonable security and encryption measures are used during data in transit within the cloud service and between data centres.

8. Access control

- 8.1. The Client must ensure there are sufficient measures in place to prevent unauthorised access to the data.
- 8.2. Sautech offers an authentication process based on the Client's information provided and includes creating, updating, suspension, and deletion of user accounts to remove access from employees when they leave the Client or to reset forgotten lost or stolen credentials where the client informed and instructed Sautech to do so.

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- 8.3. Should the Client's employees or contractors have access from a personal computer, phone or other electronic devices at home, the Client must ensure that the devices used by its employees to access its system are adequately protected.

9. Data retention and deletion

- 9.1. All personal information obtained from clients, employees and service providers / vendors is securely retained on Sautech's platform in accordance with the retention provisions set out in applicable laws and regulations of South Africa.
- 9.2. In the instance where Sautech acts as aggregator for collation of personal information, it is retained at the sole risk of the client of Sautech.
- 9.3. When Sautech deletes data, the data is removed entirely from the underlying storage media unless some additional steps are taken as instructed from the Client and approved by Sautech.
- 9.4. Sautech is likely to have multiple copies of data stored in various locations to provide a more reliable service, including backup tapes or other media not directly connected to the server.
- 9.5. Sautech may also have stored copies of personal data stored in a cloud service.
- 9.6. Sautech can only delete all copies of personal data in the following manner:
- 9.6.1. within a timescale that is in line with the Client's retention schedule;
 - 9.6.2. with the express consent of the Client;
 - 9.6.3. on written request of the Client if the Client received a data subject request in terms of the Protection of personal Information Act, 2013; and
 - 9.6.4. due to non-payment of the client.

10. Provider access

- 10.1. If Sautech manages the computing resources on behalf of the Client, Sautech has access to copies of the data, which must be authorised explicitly for actions such as supporting support services.

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- 10.2. If a service level agreement is in place, it specifies the circumstances in which Sautech may access the personal data it processes and is subject to an audit process which alerts the Client of unauthorised access, deletion or modification.

11.Further processing

- 11.1. Sautech only processes personal data for the specified purposes as instructed by the Client and agreed to contractually.
- 11.2. Sautech will not process the personal data it processes for its own advertising purposes unless the Client has authorised this and the Client has explained this processing to data subjects in writing.

12.Using cloud services from outside South Africa

- 12.1. Some computing resources managed by Sautech may be located outside South Africa.
- 12.2. Sautech will not transfer personal data to any country or territory outside South Africa unless that territory ensures an adequate level of protection for data subjects' rights and freedoms concerning the processing of personal data without consent.
- 12.3. The data remains within Sautech's network of data centres.

13.Multi-tenancy environment

- 13.1. Sautech acts as a data processor for many clients and, in turn, may support a vast number of users.
- 13.2. Information of each client is segregated and might be stored on the same underlying infrastructure as all other clients. In addition to providing such services, Sautech serves as an aggregator to multiple platforms and solutions together, providing a single point of access (user interface) for the end-user, whilst providing an end-to-end audit trail of all such activities performed.
- 13.3. This means that there are multiple entry points to the servers from various clients to various software and solutions, but Sautech has a robust set of physical, organisational and technical

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safeguards in place to protect against the possibility of one Client gaining access to another's personal data.

- 13.4. Sautech has reasonable measures in place so that the activities of one Client do not impact on those of another.
- 13.5. The Client ensures that all POPIA requirements have been adhered to in the processing of any information as set out above.

14. Rights of data subjects

- 14.1. The Client must ensure that irrespective of utilising Sautech, data subjects can still exercise their rights. This includes their right to access their personal data and the right to remove or object to their personal data being processed for other purposes and relaying this information to Sautech for the removal of the data subject's information.
- 14.2. The Client must be fully compliant with the Protection of Personal Information Act since they remain the Responsible Party.